IN THE SUPREME COURT OF IOWA
No. 25-0677

STATE OF IOWA,
Plaintiff-Appellee,

v.

FRANK HUGO WELTE II,
Defendant-Appellant.

ON APPEAL FROM THE IOWA DISTRICT COURT FOR WOODBURY COUNTY
THE HONORABLE JAMES DAANE; CASE NO. STA0238173

BRIEF OF AMICUS CURIAE BY FIFTEEN IOWA STATE SENATORS PURSUANT TO IOWA CODE § 625A.19 IN SUPPORT OF APPELLEE STATE OF IOWA

W. Charles Smithson, AT0007343
1201 Office Park Road, #1811
West Des Moines, Iowa 50265
(515) 681-2354
25smithson@gmail.com
Counsel for Amici Curiae

TABLE OF CONTENTS

STATEMENT REQUIRED BY IOWA R. APP. P. 6.906(4)(d) 5

INTEREST OF AMICI CURIAE 5

ARGUMENT 6

CONCLUSION 10

CERTIFICATE OF COMPLIANCE 12

CERTIFICATE OF SERVICE 12

TABLE OF AUTHORITIES

Cases

AFSCME Iowa Council 61 v. State, 928 N.W.2d 21, 31 (Iowa 2019) 8

Formaro v. Polk County, 773 N.W.2d 834 (Iowa 2009) 10

Harden v. State, 434 N.W.2d 881 (Iowa 1989) 8

In re Detention of Schuman, 2 N.W.3d 33 (Iowa 2024) 8

Iowa Comprehensive Petroleum Underground Storage Tank Fund Bd., v. Mobil Oil Corp., 606 N.W.2d 359 (Iowa 2000) 7

State v. Baker, 688 N.W.2d 250 (Iowa 2004) 9

State v. Button, 622 N.W.2d 480 (Iowa 2001) 6

State v. Geddes, 998 N.W.2d 166 (Iowa 2023) 6

State v. Gonzales, 718 N.W.2d 304 (Iowa 2006) 8

State v. Iowa Dist. Ct. for Johnson Cty., 730 N.W.2d 677 (Iowa 2007) . 10

State v. Keene, 629 N.W.2d 360 (Iowa 2001) 8

State v. Kieffer, 17 N.W.3d 651 (Iowa 2025) 6

State v. Millsap, 704 N.W.2d 426 (Iowa 2005) 9

State v. Musser, 721 N.W.2d 734 (Iowa 2006) 9

State v. Nail, 743 N.W.2d 535 (Iowa 2007) 9

State v. Rhodes, 6 N.W.3d 741 (Iowa 2024) 6

State v. Schultz, 604 N.W.2d 60 (Iowa 1999) 6, 7

State v. Seering, 701 N.W2d 655 (Iowa 2015) 8

State v. White, 545 N.W.2d 552 (Iowa 1996) 9

Constitutional Provisions

Iowa Const. art. III 5, 10

Statutes

Iowa Code § 4.4 8

Iowa Code § 4.6 6

Iowa Code § 481A.1(33) 7

Iowa Code § 481A.38 ..... 5, 6, 7, 9, 10

Other

Iowa Admin. Code r. 571-106.7(6) 7

STATEMENT REQUIRED BY IOWA R. APP. P. 6.906(4)(D)

No party or party's counsel authored this brief in whole or in part nor contributed money to fund the preparation or submission of this brief. No other person contributed money to fund the preparation or submission of this brief.

INTEREST OF AMICI CURIAE

Senate Majority Leader Mike Klimesh hereby files this amicus curiae brief. Senate Majority Leader Klimesh is joined by fourteen other Iowa State Senators who were duly elected by the citizens of their several districts. The brief is being filed pursuant to Iowa Code § 625A.19 (2026) as the appeal includes a challenge to Iowa Code § 481A.38 as being unconstitutionally vague.

The Senate is a legislative body of the General Assembly created by Iowa Const. art. III. As fifteen elected State Senators, Amici have a duty under the Constitution to ensure that the General Assembly's authority in passing legislation is protected. This case involves a substantial impact on the authority of the General Assembly as a coequal branch of government.

Amici include: Mike Klimesh, Senate Majority Leader; Amy Sinclair, Senate President; Ken Rozenboom, Senate President Pro Tempore; Lynn Evans, Assistant Majority Leader; and Senators Kevin Alons, Mark Lofgren, Charlie

McClintock, Jeff Reichman, Dave Rowley, Jason Schultz, Tom Shipley, Annettee Sweeney, Cherielynn Westrich, Jack Whitver, and Dan Zumbach.

ARGUMENT

1. INTRODUCTION.

Amici file this brief in defense of Iowa Code § 481A.38 (2026) that sets out prohibited acts on taking wildlife. This Court must first determine if the issue of vagueness has been preserved for appeal. Amici do not argue this point but rather focus this brief on whether the statute is ambiguous. Amici do not believe the law is ambiguous and urge the Court to reject the vagueness challenge. See e.g. *State v. Rhodes*, 6 N.W.3d 741 (Iowa 2024). If the Court does determine the statute is ambiguous, Amici urge the application of Iowa Code § 4.6 (2026) on interpreting ambiguous statutes and court precedent to find that § 481A.38 is not unconstitutional under the void-for-vagueness doctrine. See e.g. *State v. Geddes*, 998 N.W.2d 166 (Iowa 2023).

2. IOWA CODE § 481A.38 IS NOT VAGUE.

Amici first urge this Court to adhere to the principle of judicial restraint and avoid deciding constitutional issues when a case may be resolved on other grounds. See e.g. *State v. Kieffer*, 17 N.W.3d 651 (Iowa 2025); and *State v. Button*, 622 N.W.2d 480 (Iowa 2001). As such, if the Court can resolve this appeal by avoiding

the vagueness issue it should do so. If the Court determines the statute is ambiguous and the issue is preserved, Iowa Supreme Court precedent clearly favors the law's constitutionality.

"The polestar of statutory interpretation is to give effect to the legislative intent of a statute." *State v. Schultz*, 604 N.W.2d 60, 62 (Iowa 1999). To ascertain legislative intent, the Iowa Supreme Court has stated that it examines the language of the statute, the underlying purpose and policies, the consequences stemming from different interpretations, and that the statute should be construed in its entirety. *Iowa Comprehensive Petroleum Underground Storage Tank Fund Bd., v. Mobil Oil Corp.*, 606 N.W.2d 359, 363-365 (Iowa 2000).

The intent of § 481A.38 is that "transport" does not mean striking a deer with a vehicle, prohibiting a hunter from driving to and from a hunting site, or carrying a lawfully taken carcass. The accompanying administrative rule further conveys this intent. Iowa Admin. Code r. 571-106.7(6) provides that the "use of… automobiles, aircraft, or any mechanical conveyance or device…is prohibited." The rule then provides an exception for "paraplegics and single or double amputees" to "hunt from any stationary motor-driven land conveyance."[1] Amici urge this Court to find that the legislative intent is to prohibit the active use of an automobile during the actual hunt. Iowa Code § 481A.1(33) (2026) supports this

[1] This rule is currently renumbered as 571-106.11(5).

by defining "transport" as "all carrying or moving or causing to be carried or moved." Again, the intent is to prohibit certain methods of taking wildlife including impermissible usage of automobiles to do so.

Certain principles are important to note. First, statutes are "cloaked with a presumption of constitutionality" that must be rebutted with proof of "unconstitutionality beyond a reasonable doubt." *AFSCME Iowa Council 61 v. State*, 928 N.W.2d 21, 31 (Iowa 2019) (quoting *State v. Seering*, 701 N.W2d 655, 661 (Iowa 2015)). See also *In re Detention of Schuman*, 2 N.W.3d 33 (Iowa 2024); and Iowa Code § 4.4 (2026) in "enacting a statute, it is presumed that [c]ompliance with the Constitutions of the state and of the United States is intended." The argument that the law is vague does not meet the exacting threshold set by statute and judicial precedent.

Second, courts look for a reasonable interpretation that best achieves the statute's purpose as well as looking to utilize interpretations that avoid absurd results. See e.g. *State v. Gonzales*, 718 N.W.2d 304 (Iowa 2006) and *Harden v. State*, 434 N.W.2d 881 (Iowa 1989). To interpret the statute as the Appellant seeks is contrary to this Iowa Supreme Court precedent as that interpretation creates an "absurd result." Such precedent protects the legislature's lawmaking authority.

Finally, as the Iowa Supreme Court has held, a challenge asserting that statutes are unconstitutionally vague face a heavy burden. See e.g. *State v. Keene*,

629 N.W.2d 360 (Iowa 2001) and *State v. White*, 545 N.W.2d 552 (Iowa 1996). Under judicial precedent, this appeal fails to overcome that heavy burden. As such, this Court should find § 481A.38 constitutional as written by the legislature.

In applying the void-for-vagueness doctrine as established by the Iowa Supreme Court, the legislature enacted a law that meets the criteria. First, fair notice and warning exists. See e.g. *State v. Baker*, 688 N.W.2d 250 (Iowa 2004); and *State v. Millsap*, 704 N.W.2d 426 (Iowa 2005). The statute and rule are part of a comprehensive regulatory scheme on "method of taking wildlife" including the use of automobiles. This fair notice is reflected in the titles and language of both the statute and administrative rule. Hunters have ordinary understanding of what conduct is prohibited. Also, this Court can find that the Appellant's conduct is within any statutory construction and thus the statute is not vague. See *State v. Musser*, 721 N.W.2d 734 (Iowa 2006). Speculative hypotheticals do not change this outcome.

In addition, the law and rule provide sufficient guidance to prevent exercise of power in an arbitrary or discriminatory fashion as related to the methods of taking wildlife. See *State v. Nail*, 743 N.W.2d 535 (Iowa 2007). There are clearly established standards for permitted methods of taking wildlife. This appeal can be resolved on this point without a finding the law vague.

Finally, § 481A.38 does not "sweep so broadly as to prohibit substantial amounts of constitutionally-protected activities, such as speech…." *Id.* at 539. This Court can certainly interpret the statute in a manner that avoids overbreadth. See *Formaro v. Polk County*, 773 N.W.2d 834 (Iowa 2009).

The meaning of the statute is clear and there is no reason for this Court to seek a different meaning than what the text provides. See *State v. Iowa Dist. Ct. for Johnson Cty.*, 730 N.W.2d 677 (Iowa 2007). The accompanying administrative rule supports the intent of the statute. Amici do not believe the law is ambiguous, and certainly not unconstitutionally vague. However, if the Court determines the law is ambiguous, based on the language of the law and rule, as well as the precedent of the Iowa Supreme Court, Amici urge the Court to find that Iowa Code § 481A.38 does not violate the void-for-vagueness doctrine. Such a result protects the legislature's authority under Iowa Const. art. III to pass laws.

CONCLUSION

This brief is filed pursuant to Iowa Code § 625A.19 as it involves a challenge to the constitutionality of a law. Amici do not request time if oral arguments are scheduled. For the reasons stated herein, Amici urge the Court to find that Iowa Code § 481A.38 is not unconstitutionally vague.

Respectfully submitted,

/s/ W. Charles Smithson
W. Charles Smithson, AT0007343
1201 Office Park Road, #1811
West Des Moines, Iowa 50265
(515) 681-2354
25smithson@gmail.com
Counsel for Amici Curiae

CERTIFICATE OF COMPLIANCE

This brief complies with the typeface requirements and type-volume limitation of Iowa R. App. P. 6.903(1)(d) and 6.903(1)(g)(1) or (2) because:

[X] this brief has been prepared in a proportionally-spaced typeface using Times New Roman in 14-point font and contains 1,141 words, excluding the parts of the brief exempted by Iowa R. App. P. 6.903(1)(g)(1) or

[ ] this brief has been prepared in a monospaced typeface using Times New Roman in 14-point font and contains XXX lines of text, excluding the parts of the brief exempted by Iowa R. App. P. 6.903(1)(g)(2).

/s/ W. Charles Smithson

Signature

February 26, 2026

Date

CERTIFICATE OF SERVICE

I hereby certify that on February 26, 2026, I electronically filed the forgoing with the Clerk of the Supreme Court of Iowa using the Iowa Electronic Document Management System, that will send notification to the parties of record.

/s/ W. Charles Smithson

W. Charles Smithson